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Plaintiff, In Pro Per

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco
07/23/2026
Clerk of the Court
BY: RONNIE OTERO
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,

PLAINTIFF,

v.

Subhi Abdelhalim;

CSAA Insurance Exchange;

Phillips, Spallas & Angstadt LLP;

Priya D. Navaratnasingham;

Alberto Reyna;

Michael R. Chambers;

Carbone, Smith & Koyama;

and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

(Related: CGC-21-594102; CGC-25-631802)

**PLAINTIFF'S REPLY MEMORANDUM
OF POINTS AND AUTHORITIES IN
SUPPORT OF MOTION FOR
RECONSIDERATION**

(CCP § 1008(a); Evid. Code §§ 452/453 companion RJN)

Hearing Date: July 31, 2026

Time: 9:00 a.m.

Dept.: 301

Judge: Hon. Christine Van Aken

Matter: Motion for Reconsideration of May 12, 2026

Order Granting Special Motion to Strike

(Wong fully litigated; operative Tx **79830359**)

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under Code of Civil Procedure sections 1008, subdivision (a), and 2015.5; and California Rules of Court, rules 2.256, subdivision (b), 2.257, 3.1110, and 3.1113.
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and

69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257.

4. This paper is timely filed for the July 31, 2026 hearing in Case No. CGC-25-631801, Department 301 (operative Tx **79830359**).

I. INTRODUCTION

Plaintiff submits this Reply Memorandum in response to Defendants' July 22, 2026 Opposition to Plaintiff's Motion for Reconsideration (the "Defense OPP"). The operative moving paper remains Plaintiff's June 22, 2026 Motion for Reconsideration (Tx **79830359**), continued by this Court on July 15, 2026 to July 31, 2026.

The Defense OPP is procedurally and substantively deficient. It freezes ripeness as of June 24, 2026; asserts that Plaintiff "completely fail[ed]" to raise new or different facts, circumstances, or law under Code of Civil Procedure section **1008(a)**; and colors Plaintiff's filings as a "cascade" that has "burdened and harassed" the Defense, while footnoting a vexatious-litigant motion in related Case No. **CGC-25-631802**. Crucially, it never engages or attempts to rebut the *Wong* instruction record.

Plaintiff's concurrently filed Request for Judicial Notice (Items **1** through **6**) pins the official court records and procedural chronology referenced herein.

II. ARGUMENT

A. ARGUMENT I: DEFENDANTS FAIL TO CONTEST THE WONG RECORD UNDER SECTION 1008(A)

Code of Civil Procedure section **1008(a)** authorizes reconsideration based on new or different facts, circumstances, or law, shown by affidavit or record evidence. (*Standard Microsystems Corp. v. Winbond Electronics Corp.* (2009) 179 Cal.App.4th 868, 888-890.)

Plaintiff's operative motion and *Wong* papers (RJN Items **4**, **5**, and **6**; Tx **79830359**, Tx **79843899**, FSX **79843794**) tender the April 23, 2025 Reporter's Transcript Volume 11 instruction record: the

1 jury asked whether to apply Vehicle Code sections **22107** and **21804(a)**; the trial court forbade
2 consideration; Plaintiff objected. That record was not before this Court when it ruled on May 12,
3 2026.

4 The May 12, 2026 minute order (RJN Item **2**; DocID **10210043**) rested on a “fully litigated in
5 the trial court” finding. Issue preclusion requires issues actually litigated and necessarily decided.
6 (*Lucido v. Superior Court* (1990) 51 Cal.3d 335, 341.) *Wong* RT 11 and that “fully litigated”
7 premise cannot both be true as to the statutory negligence-duty question the jury was forbidden to
8 consider.

9 The Defense OPP quotes section **1008(a)** and then asserts a complete failure to raise new matter.
10 Yet it cites neither *Wong* nor DocID **10210043**. Defendants’ complete silence on this evidentiary
11 showing constitutes a waiver of argument on the point and a failure to contest Plaintiff’s section
12 **1008(a)** grounds.

13 **B. ARGUMENT II: THE RIPENESS OBJECTION IS SUPERSEDED** 14 **AND MOOTED BY THE COURT’S JULY 15 ORDER**

15 Section **1008(a)**’s ten-day clock is tied to written notice of entry of the order. It is a timing rule,
16 not a license to treat a Court-continued calendar as void. (*Le Francois v. Goel* (2005) 35 Cal.4th
17 1094, 1107-1108 [court’s inherent authority to reconsider prior rulings].)

18 The Defense OPP freezes the record “as of June 24, 2026,” asserts that Defendants’ proposed order
19 remains pending signature, and concludes the motion “is not yet ripe.” (RJN Item **3**.) However,
20 this Court already managed that timing point on July 15, 2026, by continuing the motion to **July**
21 **31, 2026, before the same judge**, specifically to accommodate order-entry posture. (RJN Item **1**.)
22 Once a signed order and notice of entry exist, July 31 is the merits calendar the Court set. A
23 procedural dismissal labeled as “ripeness” would improperly override the Court’s own July 15
24 continuance order.

C. ARGUMENT III: DEFENDANTS’ “CASCADE / HARASSMENT” FRAM- ING IMPROPERLY DISTRACTS FROM UNADJUDICATED ISSUES

The Defense OPP’s characterizations of a “cascade,” complaints of being “burdened and harassed,” and reference to an August 26 vexatious-litigant footnote in related Case No. CGC-25-631802 are non-substantive atmospherics designed to avoid the *Wong* record.

Primary rights are defined by the harm suffered, not the legal theories asserted. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 681-682; *Mycogen Corp. v. Monsanto Co.* (2002) 28 Cal.4th 888, 904.)

The underlying personal-injury action (Case No. CGC-21-594102) adjudicated driver negligence. Plaintiff’s claims concerning post-collision investigation and claim handling involve distinct duties and injury events.

More importantly, Defendants cannot substitute character attacks in a related action for a substantive response to a section **1008(a)** motion in this action. Plaintiff does not ask this Court on July 31 to decide the August 26, 2026 vexatious motion in CGC-25-631802. The sole issue before Department 301 is whether the *Wong* transcript presents new or different facts or circumstances justifying reconsideration of the May 12 order under section **1008(a)**.

III. CONCLUSION

For the foregoing reasons, Plaintiff respectfully requests that the Court:

1. Overrule Defendants’ procedural ripeness objections as mooted by the Court’s July 15, 2026 continuance order;
2. Grant reconsideration under Code of Civil Procedure section **1008(a)** based on the un rebutted *Wong* record; and
3. Upon reconsideration, modify or clarify the May 12, 2026 order (DocID **10210043**) to reflect that the statutory negligence-duty issues identified in *Wong* RT Vol. 11 were not previously litigated or decided.

Dated: July 23, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per
CGC-25-631801

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PROOF OF SERVICE

Case: Rosario v. Abdelhalim, et al.

San Francisco County Superior Court Case No.: CGC-25-631801

At the time of service, I was over 18 years of age and a party to this action (Plaintiff in proper). My residence / electronic service address is 7624 Melody Drive, Rohnert Park, CA 94928 / soltrinox@gmail.com.

On **July 23, 2026**, I served the following document(s):

PLAINTIFF'S REPLY MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF MOTION FOR RECONSIDERATION

X BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address(es) set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6 and California Rules of Court, rule 2.251.

Addressed as follows:

Attorneys for Defendants CSAA Insurance Exchange; Carbone, Smith & Koyama; and Michael R. Chambers

Porter Scott, A Professional Corporation

Chad S. Tapp, Esq. - ctapp@porterscott.com

Tyler J. O'Connell, Esq. - toconnell@porterscott.com

(Electronic service addresses verified from Defendants' July 22, 2026 Opposition counsel block and Proof of Service in CGC-25-631801.)

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on July 23, 2026, at Rohnert Park, California.



Franciscus Dylan Rosario

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,

PLAINTIFF,

v.

Subhi Abdelhalim;

CSAA Insurance Exchange;

Phillips, Spallas & Angstadt LLP;

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and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

(Related: CGC-21-594102; CGC-25-631802)

DECLARATION OF COMPLIANCE

CRC 2.256 / 3.1110

Hearing Date: July 31, 2026

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3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257.
4. This paper is timely filed for the July 31, 2026 hearing in Case No. CGC-25-631801, Department 301 (operative Tx **79830359**).

1 I, Plaintiff in pro per, declare pursuant to Code of Civil Procedure section 2015.5 that the following
2 is true and correct:

3 **I. PLEADING-PAPER AND FIRST-PAGE FORMAT**

- 4 1. **California Rules of Court, rules 2.100 through 2.111.** This paper is rendered on pleading
5 paper with court caption, readable type, and first-page formatting consistent with California
6 Rules of Court, rules 2.100 through 2.111.

7 **II. ELECTRONIC FILING AND FORMAT**

- 8 1. **CRC 2.256(b).** This paper is filed as a text-searchable PDF consistent with California Rules
9 of Court, rule 2.256, subdivision (b).
10 2. **CRC 2.257.** Any signature image conforms to California Rules of Court, rule 2.257.
11 3. **CRC 3.1110(f)(4).** The companion exhibits volume lodged with this July 31, 2026 reply
12 cohort contains electronic bookmark entries for Exhibits A through F.

13 **III. COHORT LIMIT**

- 14 1. This declaration is limited to the July 31, 2026 reply cohort in Case No. CGC-25-631801
15 (Request for Judicial Notice ISO Reply; Reply MPA; Exhibit Index; Combined Exhibits A
16 through F).

17 Executed on July 23, 2026, at Rohnert Park, California.



Franciscus Dylan Rosario
Plaintiff, In Pro Per